

EXHIBIT “A”

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KESNEL PHILIPPE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER "JOHN" PAIGE

(the name "John" being fictitious as the true name is presently
unknown), individually and in his official capacity as New
York City Police Officer,

Defendants.
-----X

Index No.: 7748/15

Date Purchased: 6/18/15

SUMMONS

Plaintiff designates Kings
County as the place of trial.

The Basis of Venue is:
Place of Occurrence

Plaintiff resides at:
14 South 26th Street,
Wyandanch, NY 11798

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 18, 2015



ELLIE A. SILVERMAN, ESQ.

NOVO LAW FIRM, PC

Attorneys for Plaintiff

KESNEL PHILIPPE

299 Broadway, 17th Floor

New York, NY 10007

212-233-6686

File No.: 14-3732

TO: THE CITY OF NEW YORK, Municipal Building · New York, NY 10007
NEW YORK CITY POLICE DEPARTMENT, 100 Church Street, New York, NY 10007;

2015 JUN 18 PM 4:33

2015 JUN 18 PM 4:44
RECEIVED
KINGS COUNTY CLERK

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Date Purchased:

-----X
KESNEL PHILIPPE,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER "JOHN " PAIGE
(the name "John" being fictitious as the true name is presently
unknown), individually and in his official capacity as New
York City Police Officer,

Defendants.

-----X
Plaintiff, by his attorneys, NOVO LAW FIRM, PC, complaining of the Defendants 'THE
CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
JOHN PAIGE, respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff KESNEL PHILIPPE was, and still is, an individual residing 14 South 26th Street,
County of Suffolk, State of New York.
2. Defendant THE CITY OF NEW YORK was, and still is, at all times relevant herein, a
municipal corporation duly incorporated and existing under and by virtue of the laws of the
State of New York.
3. Defendant NEW YORK CITY POLICE DEPARTMENT was, and still is, at all times
relevant herein, a municipal corporation established and maintained by Defendant THE
CITY OF NEW YORK.

4. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by Defendant **NEW YORK CITY POLICE DEPARTMENT**.
5. Defendant **POLICE OFFICER JOHN PAIGE** was, and still is, at all times relevant herein, duly appointed and acting officer, servant, employee and agent of Defendant **NEW YORK CITY POLICE DEPARTMENT** a municipal agency of Defendant **THE CITY OF NEW YORK**.
6. Defendant **POLICE OFFICER JOHN PAIGE** was, and still is, at all times relevant herein, a male New York City Police Officer, assigned to the 75th precinct located at 1000 Sutter Avenue, Brooklyn, NY 11208.
7. On September 17, 2014, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiffs' demands for adjustment thereof was duly served on the Plaintiffs' behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced. A copy of the Notice of Claim is attached hereto and marked "EXHIBIT 1".
8. Pursuant to General Municipal Law § 50(h), a hearing was requested for Plaintiff KESNEL PHILIPPE and the hearing has been assigned by Defendant's for June 19, 2015.

FACTS

9. Plaintiff **KESNEL PHILIPPE** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
10. On or about June 19, 2014, at approximately 3:20 P.M., Plaintiff **KESNEL PHILIPPE**, was a lawful operator of a parked vehicle at or near the intersection of Livonia Avenue and Ashford Street, in the County of Kings, City of Brooklyn and State of New York, he became a victim of police misconduct, police brutality and malicious and sadistic force.
11. While Plaintiff **KESNEL PHILIPPE** was lawfully sitting in his vehicle at or near aforementioned location, he was approached by Defendant **POLICE OFFICER JOHN PAIGE**, New York City Police Officer who, without reasonable suspicion, without probable cause and without any threat or reasonable belief of unlawful activity, proceeded to violently and unlawfully push, shove, slam onto the ground, assault, batter, and unlawfully arrest and handcuff Plaintiff without any indication as to what he had done wrong and/or what, if any, crime(s) he had committed.
12. Plaintiff **KESNEL PHILIPPE** was subjected to searches by Defendant **POLICE OFFICER JOHN PAIGE**.
13. After being handcuffed, he continued to be a victim of malicious and sadistic force at the hands of **POLICE OFFICER JOHN PAIGE**. Namely, he was placed in a chokehold by **POLICE OFFICER JOHN PAIGE**, and was not released until he almost passed out. His neck swelled and he was dizzy with noticeable shortness of breath and obvious distress.
14. Upon information and belief, at no time did Plaintiff **KESNEL PHILIPPE** disobey any command given by Defendant **POLICE OFFICER JOHN PAIGE**.

15. Upon information and belief, with deliberate indifference to his serious medical needs claimant **KESNEL PHILIPPE** was placed into a patrol vehicle and left there for approximately one (1) hour as **POLICE OFFICER JOHN PAIGE** stood on the street.
16. Upon information and belief, Plaintiff **KESNEL PHILIPPE** was taken to the 75th Precinct where he was placed in a holding cell and remained there for approximately six (6) hours.
17. Upon information and belief, while in Defendants' custody, Plaintiff **KESNEL PHILIPPE** requested medical attention several times.
18. Upon information and belief, while in the holding cell, Plaintiff complained of pain and injuries and pleaded to be given medical attention, but with deliberate indifference to his serious medical needs, Plaintiff was deprived of medical attention.
19. Upon information and belief, Plaintiff **KESNEL PHILIPPE** was not read his Miranda Rights
20. Upon information and belief, Plaintiff **KESNEL PHILIPPE** was not allowed to make a phone-call.
21. Upon information and belief, while in the Defendants' custody, Plaintiff **KESNEL PHILIPPE** made several complaints of pain that the handcuffs and shackles were too tight.
22. Upon information and belief, Defendants denied all requests to loosen or remove the handcuffs and/or shackles.
23. Upon information and belief, at no point did Plaintiff **KESNEL PHILIPPE** resist arrest or disobey the arresting officer's commands.
24. Upon information and belief, after spending several hours in the precinct holding cell, Claimant was removed from the cell, given a summons and released without being arraigned.

25. Upon information and belief, on or about September 9, 2014, Plaintiff KESNEL PHILIPPE's criminal case was dismissed based on POLICE OFFICER JOHN PAIGE's failure to file a legally acceptable accusatory instrument against Claimant.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY THE CITY OF NEW YORK

26. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
27. At all times material to this complaint, Defendant THE CITY OF NEW YORK acting through its police department and through Defendant POLICE OFFICER JOHN PAIGE, had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
28. At all times material to this complaint, Defendant THE CITY OF NEW YORK acting through its police department, and through Defendant POLICE OFFICER JOHN PAIGE, had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendant's supervisors of the need to train, screen, supervise and discipline said Defendant. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
29. Defendant THE CITY OF NEW YORK acting through its police department, and through Defendant POLICE OFFICER JOHN PAIGE, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant THE CITY OF NEW YORK being aware that the persistent and

substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff KESNEL PHILIPPE and which are officially tolerated by Defendant THE CITY OF NEW YORK. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.

30. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY NEW YORK CITY POLICE DEPARTMENT

31. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
32. At all times material to this complaint, Defendant NEW YORK CITY POLICE DEPARTMENT acting through its police department and through Defendant POLICE OFFICER JOHN PAIGE, had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

33. At all times material to this complaint, Defendant NEW YORK CITY POLICE DEPARTMENT acting through Defendant POLICE OFFICER JOHN PAIGE, had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendants' supervisors of the need to train, screen, supervise and discipline said Defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
34. Defendant NEW YORK CITY POLICE DEPARTMENT acting through Defendant POLICE OFFICER JOHN PAIGE, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant NEW YORK CITY POLICE DEPARTMENT being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff KESNEL PHILIPPE and which are officially tolerated by Defendant NEW YORK CITY POLICE DEPARTMENT. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.
35. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great

humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY POLICE OFFICER JOHN PAIGE.

36. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
37. By his conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff KESNEL PHILIPPE in failing, refusing and/or withholding his medically necessary medication, medical attention and/or other medical needs and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendant. Defendant POLICE OFFICER JOHN PAIGE, acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.
38. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
EXCESSIVE FORCE

39. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
40. Plaintiff was continuously subjected to multiple excessive unnecessary and unreasonable acts of physical force and to unnecessary, and to unreasonable and excessive terms and

conditions of his detention, at the hands of defendants under the color of state law, in violation of his rights as guaranteed under the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 USC § 1983.

41. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
MALICIOUS ABUSE OF PROCESS

42. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
43. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE issued legal process to place Plaintiff KESNEL PHILIPPE, under arrest and subject him to prosecution.
44. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL JOHN PAIGE arrested and participated in prosecuting Plaintiff KESNEL PHILIPPE, in order to obtain collateral objectives outside the legitimate ends of the legal process.
45. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE arrested and participated in prosecuting Plaintiff KESNEL PHILIPPE in order to obtain the collateral objective of intimidating Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of NYPD misconduct and excessive force.

46. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE acted with intent to do harm to Plaintiff KESNEL PHILIPPE without excuse or justification.

47. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
DERELICTION OF DUTY, DEPRAVED INDIFFERENCE
and FAILURE TO INTERCEDE

48. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

49. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE were under a duty of safeguarding the public and ensuring the appropriate execution of the New York Police Department's role. Plaintiff KESNEL PHILIPPE duly relied on Defendants' fulfillment of their policing duties.

50. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE had an affirmative duty to intercede when Plaintiff KESNEL PHILIPPE's constitutional rights were being violated in Defendants' presence.

51. At the time of the incident, Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE, were observing and aware of the wrongful acts against Plaintiff KESNEL PHILIPPE.

52. At the time of the incident, Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE, neglected to intervene on Plaintiff KESNEL PHILIPPE's behalf in dereliction of their duty to Plaintiff and in depraved indifference to Plaintiff's well-being.
53. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE violated Plaintiff KESNEL PHILIPPE's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
54. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE had an affirmative duty to intercede when Plaintiff KESNEL PHILIPPE constitutional rights were being violated in Defendants' presence by falsifying evidence of probable cause to arrest and prosecute Plaintiff.
55. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

56. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
57. By the actions described above, Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE, caused Plaintiff

KESNEL PHILIPPE to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.

58. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR AN EIGHT CAUSE OF ACTION
MALICIOUS PROSECUTION

59. Plaintiff repeats and reiterates the allegation set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
60. By the actions described above, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE**, under color of state law, maliciously prosecuted Plaintiff without probable cause, illegally, without any proper claims and without any right or authority to do so. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his rights as guaranteed by 42 USC §1983 and by the laws of the constitution of the State of New York.
61. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE**, arrested and issued legal process in order to obtain collateral objectives outside the legitimate ends of the legal process.
62. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality

and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged or injured.

AS AND FOR A NINETH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK
VIA BATTERY

63. Plaintiff **KESNEL PHILIPPE** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
64. Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, are vicariously liable to Plaintiff **KESNEL PHILIPPE** for the individual Defendants', **POLICE OFFICER JOHN PAIGE**, common tort of battery via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1) (b).
65. Defendants **POLICE OFFICER JOHN PAIGE**, committed a battery on Plaintiff **KESNEL PHILIPPE** by him being grabbed, punched, choked, his neck being squeezed, placed in a chokehold, pushed, handcuffed, patted down, thrown into a van and searched. The deprivation of food, water and sanitary conditions while in custody, was harmful, unconsented, and unjustified and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
66. That by reason of the battery, Plaintiff **KESNEL PHILIPPE** was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendants' actions.
67. That Defendant **POLICE OFFICER JOHN PAIGE** committed battery by withholding medical attention, necessary medication and ignoring Plaintiff's pleas for medical

attention, these withholdings were harmful, un-consented, and unjustified and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.

68. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TENTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS
UNDER NEW YORK STATE LAW
VIA ASSAULT

69. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
70. That on the aforementioned date, time and place, Defendants POLICE OFFICER JOHN PAIGE committed the tort of assault against Plaintiff KESNEL PHILIPPE by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendant violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law
71. That Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT is vicariously liable to Plaintiff KESNEL PHILIPPE for the individual Defendants' POLICE OFFICER JOHN PAIGE common law tort of assault via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).
72. That by reason of the aforesaid committed by Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE,

Plaintiff KESNEL PHILIPPE suffered and continues to suffer physical injury and that he was otherwise damaged.

73. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A ELEVENTH CAUSE OF ACTION
NEGLIGENCE

74. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
75. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE negligently caused injuries and otherwise damaged Plaintiff KESNEL PHILIPPE. The acts and conduct of Defendants were the direct and proximate cause of injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
76. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TWELFTH CAUSE OF ACTION
VIOLATION OF SUBSTANTIVE DUE PROCESS

77. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
78. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff KESNEL PHILIPPE that

shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.

79. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE, individually and collectively are liable for abuses against Plaintiff KESNEL PHILIPPE that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.
80. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE individually and collectively are liable for abuses against Plaintiff KESNEL PHILIPPE that shock the conscience in violation of New York law, rules and regulations.
81. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION AND TRAINING

82. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
83. At all times herein mentioned, Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT owed Plaintiff KESNEL PHILIPPE a duty to manage, control, and supervise Defendants POLICE OFFICER JOHN PAIGE.
84. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT negligently hired, screened, retained, disciplined, supervised and trained Defendants POLICE OFFICER DANIEL JOHN PAIGE.

85. At all times herein mentioned, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KESNEL PHILIPPE** a duty to hire qualified and sufficient personnel in connection with the operation, management control, teaching at and/or supervision of Defendants **POLICE OFFICER JOHN PAIGE**.
86. At all times herein mentioned, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KESNEL PHILIPPE** a duty to train their employees so as to enable them to properly maintain order and control.
87. At all times herein mentioned, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KESNEL PHILIPPE** a duty to promulgate proper and/or adequate rules and regulations governing the proper care, guidance and/or supervision to be provided and rendered by those agents, servants, officers and/or employees hired as New York City Police Officers.
88. At all times herein mentioned, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KESNEL PHILIPPE** a duty to provide a safe and proper environment.
89. At all times herein mentioned, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KESNEL PHILIPPE** a duty to prevent from being assaulted and battered while in their custody and control.
90. At all times relevant hereto, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** and/or said Defendants' agents, servants, employees and/or licensees were, jointly, severally and concurrently, negligent, careless and reckless in individually and collectively breaching each and every duty owed to Plaintiff **KESNEL PHILIPPE**.

91. The aforesaid occurrence was caused wholly and solely by reason of the negligence of Defendants THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT and/or said Defendants' agents, servants, employees and/or licensees, without any fault or negligence on the part of Plaintiff KESNEL PHILIPPE contributing thereto.
92. Defendant THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT and through Defendants POLICE OFFICER JOHN PAIGE, had *defacto* to policies, practices, customs and usage, which were a direct and proximate cause of the unconstitutional conduct alleged herein.
93. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

94. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
95. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE negligently caused emotional distress and damage to Plaintiff KESNEL PHILIPPE. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.

96. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

97. As a result of the aforementioned incident Plaintiff has sought medical attention and has been diagnosed with Post Traumatic Stress Disorder.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL HARM

98. As a result of the aforementioned incident Plaintiff has sought medical attention and has been diagnosed with Post Traumatic Stress Disorder.

99. Plaintiff KESNEL PHILIPPE repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.

100. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE knowingly, unreasonably and maliciously sought to disturb Plaintiff KESNEL PHILIPPE by their individual and collective outrageous conduct.

101. This conduct includes, without being limited to, assaulting and battering, choking, squeezing Plaintiff KESNEL PHILIPPE while he was bound by handcuffs in their custody; unreasonably detaining him; depriving him of food, water and proper medical care and subjecting him to multiple unreasonable searches and other intimidation tactics and violated his statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.

102. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN PAIGE have caused Plaintiff KESNEL PHILIPPE humiliation, anxiety, fear, sleeplessness and severe distress.

103. As a result of the foregoing, Plaintiff KESNEL PHILIPPE was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

WHEREFORE, Plaintiff demand judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
June ____, 2015

Yours, etc.


ELLIE A. SILVERMAN, ESQ.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
KESNEL PHILIPPE
299 Broadway, 17th Floor
New York, NY 10007
212-233-6686

ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New YORK affirms the following to be true under the penalties of perjury:

I am an attorney at NOVO LAW FIRM, PC, attorneys of record for Plaintiff, KESNEL PHILIPPE, in the action within. I have read the annexed **Verified Complaint** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
June ____, 2015



ELLIE A. SILVERMAN, ESQ.

Index No. 12015
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KESNEL PHILIPPE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
"JOHN" PAIGE (the name "John" being fictitious as the true name is presently unknown), individually
and in his official capacity as New York City Police Officer,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

NOVO LAW FIRM, P.C.

Attorneys for Plaintiff

KESNEL PHILIPPE

299 Broadway, 17th Floor
New York, New York 10007
(212) 233-6686
Fax (212) 233-6687

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: June 18, 2015

Ellie A. Silverman, Esq.



TO:

THE CITY OF NEW YORK, Municipal Building, 1 Centre Street, New York, New York 10007
NEW YORK CITY POLICE DEPARTMENT, 100 Church Street, New York, New York 10007